

**UNITED STATES BANKRUPTCY COURT
DISTRICT OF CONNECTICUT
BRIDGEPORT DIVISION**

In Re:	)	CHAPTER 11
	)	
HO WAN KWOK, et al.,	)	CASE NO.: 22-50073 (JAM)
	)	
Debtors.	)	Jointly Administered
	)	
LUC A. DESPINS, CHAPTER 11	)	ADV. PRO. NO.: 24-05219
TRUSTEE,	)	
	)	
Plaintiff,	)	
	)	
v.	)	
	)	
JASON MILLER,	)	APRIL 23, 2026
	)	
Defendant.	)	
	)	

**MEMORANDUM OF LAW IN SUPPORT OF
JASON MILLER’S MOTION TO WITHDRAW THE BANKRUPTCY REFERENCE**

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The defendant, Jason Miller (“Miller” or the “Defendant”) respectfully submits this memorandum in support of his motion to withdraw the reference of the above-captioned adversary proceeding from the Bankruptcy Court to the District Court in advance of Miller’s requested jury trial. The Defendant does not seek immediate withdrawal of the reference; rather, he merely seeks withdrawal at the conclusion of discovery and other pretrial matters to, *inter alia*, protect his constitutional right to a jury trial.

INTRODUCTION

On February 10, 2024, the plaintiff, Luc A. Despins, as chapter 11 trustee (the “Trustee”) appointed in the chapter 11 case of Ho Wan Kwok (the “Debtor” or “Kwok”) filed his Complaint against the Defendant, seeking avoidance of pre-petition transfers. (Adv. Proc. Dkt. No. 1.)¹

On May 30, 2025, Miller filed his *Answer to Trustee’s Avoidance Complaint* (the “Answer”). (Adv. Proc. Dkt. No. 44.) Miller has also made a demand for a jury trial (Dkt. 15) and stated that he did not consent to the Bankruptcy Court entering final orders or judgments, pursuant to Federal Rule of Bankruptcy Procedure 7012(b). (Answer at 4.)

By this motion, Miller seeks withdrawal of the *Standing Order re: Bankruptcy Cases and Proceedings* dated September 21, 1984 (the “Reference”) in this adversary proceeding at the conclusion of discovery and other pretrial matters, to allow the District Court to conduct a trial on all claims, including a jury trial on all claims so triable.

As discussed below, it is black letter law that Miller is entitled to a jury trial as to the Trustee’s fraudulent transfer claim. Miller is further entitled to a jury trial on the Trustee’s other claims to disregard the Transferor’s (as defined below) corporate form.

¹ “Adv. Proc. Doc. No. _” refers to documents filed on the electronic docket of this Adversary Proceeding. “Bankr. Dkt. No. _” refers to documents filed on the electronic docket of the Debtor’s chapter 11 bankruptcy case.

I. PROCEDURAL BACKGROUND

The Debtor filed for bankruptcy on February 15, 2022. *In re Kwok*, Case No. 22-50073 (the “Bankruptcy Case”). (Bankr. Dkt. No. 1.) The Trustee was appointed on July 8, 2022. (Bankr. Dkt. No. 523.) On February 14, 2024, the Trustee commenced the instant adversary proceeding, *Despins v. Miller*, Adv. Proc. No. 24-05219 (the “Adversary Proceeding”), seeking to avoid certain transfers made to Miller by HCHK Technologies, Inc. and Lexington Property and Staffing, Inc. (collectively, the “Transferor”). (Complaint ¶ 2.) The Trustee asserts that the pre-petition transfers are avoidable fraudulent transfers under 11 U.S.C. § 548 or alternatively under 11 U.S.C. § 544 (through New York Debtor and Creditor Law). (*See generally* Complaint.)

Upon commencement of the Adversary Proceeding, the Trustee filed a notice on the Adversary Proceeding docket advising Miller that such action was subject to the Bankruptcy Court’s *Order Directing Parties to Mediation, Appointing the Honorable James J. Tancredi as Mediator, and Amending Order Approving Procedures Applicable to Avoidance Claim Adversary Proceedings* (the “Mediation Order”), which referred this matter to mandatory mediation and stayed this Adversary Proceeding pending conclusion of such mediation proceedings.

On June 5, 2024, counsel for Miller appeared in the Adversary Proceeding. (Adv. Proc. Dkt. No. 12.) On May 30, 2025, Miller timely filed his Answer, in which he denied many of the Trustee’s allegations and asserted numerous affirmative defenses. (*See generally* Answer.) As noted above, Miller asserted his rights to a jury trial as to all claims so triable and stated that it did not consent to the Bankruptcy Court’s entry of final judgments. (Answer at 4.)

On November 7, 2025, the Bankruptcy Court entered its *Order: (A) Granting in Part Chapter 11 Trustee’s Motion for Entry of Order Amending Avoidance and Mediation Procedures; and (B) Entering Avoidance Actions Pretrial Order* in this Adversary Proceeding (the “Scheduling Order”). (Bankr. Dkt. No. 4828.) The Scheduling Order terminated the stay of this Adversary

Proceeding as provided in the Mediation Order, established omnibus discovery procedures for the Avoidance Actions (as defined in the Scheduling Order), including this Adversary Proceeding, requiring discovery to be completed by June 22, 2026, and stated that all defendants in the Avoidance Actions should be prepared for trial to be scheduled beginning the week of July 7, 2026. (*Id.* at 6–15.)

II. ARGUMENT

A. Miller’s Motion is Timely

Miller does not dispute that the Bankruptcy Court can conduct pretrial matters such as discovery and does not seek immediate withdrawal of the Reference. Whether the Bankruptcy Court can conduct a trial, however, is now ripe for adjudication given the Scheduling Order. *In re The VWE Group, Inc.*, 359 B.R. 441, 446 (S.D.N.Y. 2007) (“There is no specific time limit for applications under 28 U.S.C. § 157(d) to withdraw a reference to the bankruptcy court.” (citations omitted)). Courts in the Second Circuit have defined “timely” to mean “as soon as possible after the moving party has notice of the grounds for withdrawing the reference.” *Id.* (citations omitted). The timeliness standard is “flexible and case-specific” and “must be administered in a manner that fosters the efficient and fair resolution of disputes.” *In re Enron Creditors Recovery Corp.*, 410 B.R. 374, 381 n.9 (S.D.N.Y. 2008).

The instant motion is timely. Though the Defendant filed its Answer in July 2025, the Adversary Proceeding remained subject to the Mediation Order’s stay until recently, when the Bankruptcy Court entered the Scheduling Order. *In re Kentile Floors, Inc.*, No. 92B46466 (BRL), 1995 WL 479512, at *2 (S.D.N.Y. Aug. 10, 1995) (Defendant “did not have grounds for a motion to withdraw the reference until it filed an answer and jury demand.”). “In situations such as a motion to withdraw a bankruptcy reference, where timeliness is not governed by a specific timetable, the court must assess timeliness in the context of the parties’ interactions throughout the

course of the litigation in the bankruptcy court.” *Pryor v. Tromba*, No. 13-CV-676 (JFB), 2014 WL 1355623, at *6 (E.D.N.Y. Apr. 7, 2014) (quotations, citations and omissions omitted); *see also Interconnect Tel. Servs., Inc. v. Farren*, 59 B.R. 397, 402 (S.D.N.Y. 1986) (motion was timely when brought after motion to dismiss was adjudicated and certain discovery had been exchanged). The instant motion was filed shortly after entry of the Scheduling Order, and right after the commencement of discovery. Moreover, while a trial has not been formally scheduled, the Bankruptcy Court intends for trials to commence in or about July 2026. *See Michaelesco v. Shefts*, 303 B.R. 249, 253 (D. Conn. 2004) (“[T]he matter is scheduled for trial . . . [and therefore the] motion to withdraw the reference will not be denied as untimely.”).

The timeliness of this motion is also supported by the District Court’s rulings in other adversary proceedings brought by the Trustee. For example, the District Court has previously denied motions to withdraw the Reference based on the *Orion* factors (as discussed below). Such denials were made without prejudice to defendants re-filing such motions as to whether “the Bankruptcy Court lacks authority to finally adjudicate the Trustee’s claims” once their cases are trial ready. *See, e.g., Despins v. Weddle Law PLLC (In re Kwok)*, No. 24-mc-00109 (KAD), Dkt. No. 15 (D. Conn. Apr. 28, 2025) (“Weddle Law”) (denying motion, “without prejudice to a renewed motion, as may be appropriate, if the Adversary Proceeding becomes trial ready” (emphasis removed)); *Despins v. Greenwich Land, LLC (In re Kwok)*, No. 23-mc-00062 (KAD), Dkt. No. 26 (D. Conn. Jan. 2, 2025) (“Greenwich Land”) (same).

Though the District Court denied the respective motions for withdrawal of the Reference in *Weddle Law* and *Greenwich Land* without prejudice, these rulings are consistent with *Michaelesco*, to the extent that motions to withdraw the Reference should be filed in anticipation of trial. *See Enron Creditors Recovery Corp.*, 410 B.R. at 381 n.9 (“Parties to bankruptcy

proceedings seeking to have the reference to the bankruptcy court withdrawn should not be required to walk a tightrope between cases holding that motion is ‘premature’ if brought before a case is ‘trial ready,’ . . . and arguments that the motion is untimely if brought a few months before a scheduled trial.” (citations omitted)). Thus, filing the instant motion at this time is appropriate given the Bankruptcy Court’s recent entry of the Scheduling Order and the District Court’s prior rulings deferring withdrawal of the Reference until the matter is closer to trial.

B. Miller Has Demanded a Jury Trial and Does Not Consent to the Bankruptcy Court Presiding Over Such Trial

The Seventh Amendment to the United States Constitution guarantees that “[i]n Suits at common law, where the value in controversy shall exceed twenty dollars, the right of trial by jury shall be preserved.” U.S. Const. amend. VII. Here, as discussed in Part C.1 below, Miller undoubtedly has a jury trial right to the Trustee’s fraudulent transfer and disregard of corporate form claims. *See Granfinanciera, S.A. v. Nordberg*, 492 U.S. 33, 41 (1989) (holding jury trial right on fraudulent transfer claim); *Wm. Passalacqua Builders, Inc. v. Resnick Devs. S., Inc.* (“*Passalacqua*”), 933 F.2d 131, 136 (2d Cir. 1991) (holding jury trial right on claim to disregard corporate form when plaintiff is seeking money damages).

Under 28 U.S.C. § 157(e), if the right to a jury trial applies, the Bankruptcy Court may only “conduct the jury trial if specially designated to exercise such jurisdiction by the district court and with the express consent of all the parties.” 28 U.S.C. § 157(e). In the absence of express consent of *all* parties to the bankruptcy court presiding over a jury trial, courts have found adequate cause to support withdrawal of the Reference. *Michaelesco*, 303 B.R. at 252 (“With respect to non-core issues, the bankruptcy court is unable to conduct jury trials without the parties’ consent.” (citing *Orion*, 4 F.3d at 1101)); *see In re Lyondell Chem. Co.*, 467 B.R. 712, 721 (S.D.N.Y. 2012); *In re Arbco Cap. Mgmt., LLP*, 479 B.R. 254, 266 (S.D.N.Y. 2012).

Here, Miller does not consent to a jury trial before the Bankruptcy Court. Thus, on this ground alone, there is good cause to withdraw the Reference to ensure that Miller's right to a jury trial is vindicated.²

C. Cause Exists to Withdraw the Reference

Under 28 U.S.C. § 157(d), “[t]he district court may withdraw, in whole or in part, any case or proceeding referred under this section, on its own motion or on timely motion of any party, for cause shown.” Section 157(d) does not define cause; courts within the Second Circuit look to factors such as “whether the claim or proceeding is core or non-core, whether it is legal or equitable, and considerations of efficiency, prevention of forum shopping, and uniformity in the administration of bankruptcy law.” *In Re Orion Pictures Corp.*, 4 F.3d 1101 (2d Cir. 1993). Though *Orion* still controls in the Second Circuit, it has been modified by *Stern v. Marshall*, 564 U.S. 462 (2011), to the extent that “the relevant inquiry under the first prong of the *Orion* test is not whether a matter is core or non-core, but whether the bankruptcy court has the authority to finally adjudicate the matter.” *In re Arbco Cap. Mgmt., LLP*, 479 B.R. at 262; see *In re Lyondell Chem. Co.*, 467 B.R. at 719 (“After *Stern*, the core/non-core distinction may or may not remain relevant to a district court’s withdrawal of the reference ‘for cause.’”). The *Orion* factors require that the Reference be withdrawn in this Adversary Proceeding at the time of trial.

1. Miller is Afforded a Jury Trial Right as to the Trustee’s Constitutionally Non-Core Claims

The scope of authority a bankruptcy court has over a particular proceeding depends on whether the proceeding is “core” or “non-core.” A bankruptcy court’s authority over core

² Moreover, Miller has not filed a proof of claim in the Bankruptcy Case; his right to a jury trial has therefore not been extinguished. See *Stern v. Marshall*, 564 U.S. 462, 497 (2011); *In re CBI Holding Co., Inc.*, 529 F.3d 432, 466 (2d Cir. 2008) (“[F]iling a proof of claim is a necessary but not sufficient condition to forfeiting a creditor’s right to a jury trial.”).

proceedings is broad and includes the authority to both “hear and determine” the proceeding and to “enter appropriate orders and judgments.” 28 U.S.C. § 157(b)(1). In contrast, its authority over non-core matters is limited, and the bankruptcy court—absent the consent of the parties—is permitted only to submit proposed findings of fact and conclusions of law to the district court, which themselves are subject to *de novo* review by the district court. 28 U.S.C. § 157(c). Set forth in 28 U.S.C. § 157(b)(2) is an illustrative list of sixteen categories of core proceedings, including proceedings to determine, avoid, or recover preferences and fraudulent conveyances. 28 U.S.C. § 157(b)(2)(F), (H). While a particular claim may be statutorily core under Section 157(b)(2), it may also not be constitutionally determined by the bankruptcy court without consent under *Stern*.

In *Stern*, the United States Supreme Court ruled that not all matters statutorily designated as “core” could be finally determined by an Article I court. *Stern*, 564 U.S. at 482–84. Specifically, while a bankruptcy court had statutory authority to enter judgment on a debtor’s state law counterclaim against a creditor, it lacked the constitutional authority to do so under Article III of the United States Constitution. *Id.* at 475–503. The Supreme Court noted that “[w]hen a suit is made of ‘the stuff of the traditional actions at common law tried by the courts at Westminster in 1789,’ . . . and is brought within the bounds of federal jurisdiction, the responsibility for deciding that suit rests with Article III judges in Article III courts.” *Id.* at 484 (quoting *N. Pipeline Const. Co. v. Marathon Pipe Line Co.*, 458 U.S. 50, 90 (1982)). In deciding *Stern*, the Supreme Court relied heavily on its prior decisions in *Granfinanciera* and *Langenkamp v. Culp*, 498 U.S. 42 (1990).

In *Granfinanciera*, the Supreme Court held that the Seventh Amendment entitles a party that has not submitted a claim against a bankruptcy estate to a jury trial when sued by the bankruptcy trustee in an action to recover fraudulent monetary transfers, notwithstanding that such

proceedings are statutorily core under 28 U.S.C. § 157(b)(2). *Granfinanciera*, 492 U.S. at 36. The Supreme Court reasoned:

Although “the thrust of the Amendment was to preserve the right to a jury trial as it existed in 1791,” the Seventh Amendment also applies to actions brought to enforce statutory rights that are analogous to common-law causes of action ordinarily decided in English law courts in the late 18th century, as opposed to those customarily heard by courts of equity or admiralty. . . . There is no dispute that actions to recover preferential or fraudulent transfers were often brought at law in late 18th-century England.

Id. at 41–43 (quoting *Curtis v. Loether*, 415 U.S. 189, 193 (1974)). However, “when the same issue arises as part of the process of allowance and disallowance of claims, it is triable in equity,” and no right to a jury trial would apply. *Id.* at 58. Therefore, “under the Seventh Amendment, a creditor’s right to a jury trial on a bankruptcy trustee’s preference [or fraudulent transfer] claim depends upon whether the creditor has submitted a claim against the estate.” *Id.* The Supreme Court noted that it was an open question as to whether the Seventh Amendment or Article III would allow a bankruptcy court to conduct such a trial, but, as those issues were not before the court in *Granfinanciera*, it was not yet expressing any view. *Id.* at 64.

In *Langenkamp*, the Supreme Court addressed whether creditors had a Seventh Amendment right to a jury trial in a preferential transfer action when the creditors *had* filed claims against the bankruptcy estate. *Langenkamp*, 498 U.S. at 45. There, the Supreme Court held that in filing claims, the creditors “thereby br[ought] themselves within the equitable jurisdiction of the Bankruptcy Court,” and, “[c]onsequently, they were not entitled to a jury trial.” *Id.*

Thus, in its reliance on *Granfinanciera* and *Langenkamp*, *Stern* makes clear that the question of whether a bankruptcy court has the constitutional authority under Article III to enter a final judgment is highly analogous to the question of whether there exists a Seventh Amendment

right to a jury trial.³ Here, Miller has demanded, and is entitled to, a jury trial before an Article III court for all claims so triable. Under 28 U.S.C. § 157(e) and Fed. R. Bankr. P. 9015(b), the Bankruptcy Court cannot conduct a jury trial without the express consent of all parties, and Miller does not consent. As a result, the District Court must preside over any jury trial in this Adversary Proceeding. *See Orion*, 4 F.3d at 1101 (“If a case is non-core and a jury demand has been filed, a district court might find that the inability of the bankruptcy court to hold the trial constitutes cause to withdraw the reference.”).

a. Miller Is Entitled to a Jury Trial on the Fraudulent Transfer Claim

The Trustee’s avoidance claim under § 548 is legal in nature, and such suits exist at common law; there is therefore unquestionably a Seventh Amendment right to trial by jury. *Granfinanciera*, 492 U.S. at 56 (“There can be little doubt that fraudulent conveyance actions by bankruptcy trustees . . . are quintessentially suits at common law . . .”); *Langenkamp*, 498 U.S. at 45 (a preference defendant who does not submit a claim is entitled to a jury trial).

b. Miller Is Also Entitled to a Jury Trial on the Trustee’s Claims to Disregard the Corporate Form of the Transferors

The Second Circuit has recognized a jury trial right as to alter ego claims that require veil piercing—despite arising in both law and equity—when the ultimate remedy sought was a money judgment. *Passalacqua*, 933 F.2d at 136. In *Passalacqua*, the plaintiffs sought to recover a judgment from the defendants by obtaining an order piercing the corporate veil of its judgment debtor. *Id.* at 133–34. The district court allowed the case to be tried before a jury. *Id.* at 134. On appeal, the defendants challenged the district court’s decision allowing the veil piercing claims to

³ Miller has not consented to the Bankruptcy Court entering a final judgment. *Cf. In re Oldco M Corp.*, 484 B.R. 598, 614 (Bankr. S.D.N.Y. 2012) (“Because the defendant failed to timely object to the bankruptcy court’s final judgment, it consented to such final determination by a non-Article III judge.”).

be tried by a jury. After an extensive review of the historical treatment of claims to disregard the corporate form, which revealed a mix of both equitable and legal origin,⁴ the Second Circuit looked to the remedy being sought. *Id.* at 135–36. Because the plaintiffs were seeking money from the defendants, the Second Circuit concluded that this indicated a legal action. *Id.* at 136. (“The fact that plaintiffs seek money indicates a legal action.”). Thus, the court affirmed the district court’s decision to submit the “corporate disregard issue to the jury.” *Id.*; accord *Am. Protein Corp. v. AB Volvo*, 844 F.2d 56, 59 (2d Cir. 1988) (“issue of corporate disregard is generally submitted to the jury”); *In re FKF 3, LLC*, No. 13-CV-3601 (KMK), 2016 WL 4540842, at *17 (S.D.N.Y. Aug. 30, 2016) (“The Second Circuit has conducted a thorough historical analysis of the origins of the alter-ego doctrine and concluded that ‘disregarding the corporate form had [both] equitable and legal components,’ and that ‘the doctrine has been applied in courts both of law and equity.’ . . . Whether [defendant] has a Seventh Amendment right to a jury trial on the Trustee’s alter-ego claim will therefore turn on step two of the *Granfinanciera* test—the nature of the remedy sought.” (internal citation omitted)); *In re Kollel Mateh Efraim, LLC*, 406 B.R. 24, 28 (Bankr. S.D.N.Y. 2009) (holding that jury trial right applied to declaratory judgment that entity was alter ego of the debtor); *Robinson Mech. Contractors Inc. v. PTC Grp. Holdings Corp.*, No. 1:15-CV-77-SNLJ, 2017 WL 4150858, at *3 (E.D. Mo. Sept. 19, 2017) (“But this Court is persuaded by the approach in *Passalacqua*, where the court analyzed the remedy without looking to state law. In fact, most courts have analyzed the remedy sought without looking to state law. . . . An action seeking money damages is a legal action. . . . Thus, [defendant] is entitled to a jury trial on its alter ego claim under the Seventh Amendment.”).

⁴ The Second Circuit noted that the legal origin of such claims has greater historical support. *Id.* at 135.

The Second Circuit’s focus on the nature of the relief is consistent with recent U.S. Supreme Court guidance. *See Sec. & Exch. Comm’n v. Jarkesy*, 603 U.S. 109, 123 (2024) (holding that the remedy requested is “more important” than the cause of action in determining whether a suit is legal in nature and that “[w]hile monetary relief can be legal or equitable, money damages are the prototypical common law remedy”).

Here, the sole purpose of the Trustee’s claim to disregard the Transferor’s corporate form is to obtain money from Miller in the amount of the transfers from the Transferor. Because the Trustee is using his corporate disregard claims to obtain a money judgment against Miller, the Seventh Amendment and binding Second Circuit authority preserve to Miller his right to a jury trial on this issue.

2. Withdrawal of the Reference Will Not Encourage Forum Shopping

Forum shopping is not a concern. Defendants in other similar adversary proceedings have received several unfavorable rulings from the Bankruptcy Court, yet they have universally been affirmed by the District Court, or the District Court has refused to hear appeals. *See, e.g., Guo v. Despina (In re Kwok)*, No. 24-CV-724 (KAD), 2025 WL 252855 (D. Conn. Jan. 21, 2025) (affirming summary judgment in favor of the Trustee); *HK Int’l Funds Invs. (USA) Ltd. v. Despina (In re Kwok)*, No. 23-CV-458 (KAD), 2024 WL 3925334 (D. Conn. Aug. 23, 2024) (same); *Kwok v. Pac. Alliance Asian Opportunity Fund (In re Kwok)*, No. 23-CV-102 (KAD), 2024 WL 4349010 (D. Conn. Sept. 30, 2024) (affirming preliminary injunction in favor of the Trustee). There is therefore nothing to suggest that the District Court is a more favorable forum for Miller—only that it is the proper (and only) forum that can fully adjudicate the Trustee’s claims.

III. CONCLUSION

WHEREFORE, Miller requests that the District Court withdraw the Reference as to this Adversary Proceeding at the time of trial, and grant Miller such other and further relief as it deems just and proper.

**DEFENDANT
JASON MILLER**

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CERTIFICATE OF SERVICE

I hereby certify that, on April 23, 2026, a copy of the foregoing *Memorandum of Law in Support of Jason Miller's Motion to Withdraw the Bankruptcy Reference* was filed electronically and served by mail on anyone unable to accept electronic filing. Notice of this filing will be sent by e-mail to all parties by operation of the Court's electronic CM/ECF filing system or by First Class mail to anyone unable to accept electronic filing as indicated on the Notice of Electronic Filing. Parties may access this filing through the Court's CM/ECF system as well.

/s/ Jeffrey Hellman
Jeffrey Hellman, Esq.